

(d) the salaries and allowances payable to and the terms and conditions of service of the officers and other employees under sub-section (6) of section 13 and sub-section (6) of section 16;

(e) the procedure to be adopted by the Central Information Commission or State Information Commission, as the case may be, in deciding the appeals under sub-section (10) of section 19; and

(f) any other matter which is required to be, or may be, prescribed.

28. Power to make rules by competent authority.—(1) The competent authority may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(i) the cost of the medium or print cost price of the materials to be disseminated under sub-section (4) of section 4;

(ii) the fee payable under sub-section (1) of section 6;

(iii) the fee payable under sub-section (1) of section 7; and

(iv) any other matter which is required to be, or may be, prescribed.

29. Laying of rules.—(1) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

(2) Every rule made under this Act by a State Government shall be laid, as soon as may be after it is notified, before the State Legislature.

30. Power to remove difficulties.—(1) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act as appear to it to be necessary or expedient for removal of the difficulty:

Provided that no such order shall be made after the expiry of a period of two years from the date of the commencement of this Act.

(2) Every order made under this section shall, as soon as may be after it is made, be laid before each House of Parliament.

31. Repeal.—The Freedom of Information Act, 2002 (5 of 2003) is hereby repealed.

THE FIRST SCHEDULE

[See sections 13 (3) and 16(3)]

FORM OF OATH OR AFFIRMATION TO BE MADE BY THE CHIEF INFORMATION COMMISSIONER/THE
INFORMATION COMMISSIONER/THE STATE CHIEF INFORMATION COMMISSIONER/THE STATE
INFORMATION COMMISSIONER

“I,, having been appointed Chief Information Commissioner/Information
Commissioner/State Chief Information Commissioner/State Information Commissioner
swear in the name of God that I will bear true faith and allegiance to the

solemnly affirm

Constitution of India as by law established, that I will uphold the sovereignty and integrity of India, that I
will duly and faithfully and to the best of my ability, knowledge and judgment perform the duties of my
office without fear or favour, affection or ill-will and that I will uphold the Constitution and the laws.”.

THE SECOND SCHEDULE

(See section 24)

INTELLIGENCE AND SECURITY ORGANISATION ESTABLISHED BY THE CENTRAL GOVERNMENT

1. Intelligence Bureau.

¹[2. Research and Analysis Wing including its technical wing namely, the Aviation Research Centre of the Cabinet Secretariat.]

3. Directorate of Revenue Intelligence.

4. Central Economic Intelligence Bureau.

5. Directorate of Enforcement.

6. Narcotics Control Bureau.

7. ²***.

8. Special ³[Frontier] Force of the Cabinet Secretariat.

9. Border Security Force.

10. Central Reserve Police Force.

11. Indo-Tibetan Border Police.

12. Central Industrial Security Force.

13. National Security Guards.

14. Assam Rifles.

⁴[15. Sashtra Seema Bal.]

⁵[16. Directorate General of Income-tax (Investigation).]

⁵[17. National Technical Research Organisation.]

⁵[18. Financial Intelligence Unit, India.]

⁶[19. Special Protection Group.

20. Defence Research and Development Organisation.

21. Border Road Development Board.

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⁸[22. National Security Council Secretariat.]

⁹[23. Central Bureau of Investigation.

24. National Investigation Agency.

25. National Intelligence Grid.]

¹⁰[26. Strategic Forces Command.]

1. Subs. by notification No. G.S.R. 319(E), dated 4-5-2021.

2. Serial Number 7 omitted by notification No. G.S.R. 319(E), dated 4-5-2021.

3. Subs. by notification No. G.S.R. 319(E), dated 4-5-2021.

4. Subs. by notification No. G.S.R. 347, dated 28-9-2005.

5. Subs. by notification No. G.S.R. 235(E) dated 27-3-2008.

6. Ins. by notification No. G.S.R. 347, dated 28-9-2005.

7. Omitted by G.S.R. 235(E) dated 27-3-2008.

8. Added by notification No. G.S.R. 726(E), dated 8-10-2008.

9. Added by notification No. G.S.R. 442(E), dated 9-6-2011.

10. Ins. by notification No. G.S.R. 673(E) dated 8-7-2016.